

Mohd. Haneef v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 May 2022 · WRIT - C No. - 14055 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking certiorari to quash a Moradabad distribution demand of Rs.3,42,759 was disposed of without examining merits. The consumer was given liberty to object under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks; any such objection is to be decided in accordance with law within the next four weeks after hearing. Coercive recovery on the demand is stayed for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Mohd. Haneef filed a writ in the Allahabad High Court seeking certiorari to quash a notice dated 29 September 2021 issued by the Executive Engineer, Electricity Distribution Division-III, Moradabad, demanding Rs.3,42,759. Counsel for the Power Distribution Corporation (respondent No.3) stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period. The Court heard counsel for the petitioner, the State, and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed demand — objection under clause 6.5

HOLDING

Without expressing any opinion on merits, a consumer disputing a demand notice may file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee, to be decided in accordance with law after hearing; coercive action on the demand stands stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined to examine the demand on merits and relegated the petitioner to a clause 6.5 objection before the distribution licensee, with a time-bound decision and an eight-week stay of coercive recovery. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed demand of Rs.3,42,759 was left to be raised as an objection under Para 6.5 of the Supply Code, 2005, rather than being quashed in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS.3,42,759 IN THE NOTICE DATED 29.09.2021

Court expressly declined to express any opinion on merits. ¶ 1